

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.
**CONDITIONAL LIMITED EARTH MOVEMENT COVERAGE
ENDORSEMENT (NO EARTHQUAKE COVERAGE)**

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

Earth Movement Each Occurrence Limit and Annual Aggregate Limit \$ _____

Earth Movement Per Occurrence Deductible For this Coverage Part \$5,000.00

Notwithstanding anything to the contrary within the Earth Movement Exclusion, the insurance provided under Section I - **Coverage A - Bodily Injury and Property Damage Liability** is hereby extended to provide insurance for "property damage" caused directly by sliding, mudflow, subsidence, slippage, falling away, shrinkage, expansion, caving in, shifting, erosion, rising or tilting of lands or soils. Coverage under this endorsement is contingent upon the following conditions:

- (1) Prior to the commencement of any "new construction" activity, a soil survey of the site must be performed by a qualified and licensed engineer or soil scientist;
- (2) All "new construction" must comply completely with the recommendations and specifications set forth in the soil survey; and,
- (3) The insured must retain copies of the soil survey and documentation that any recommendations or specifications associated with the soil survey were performed, for a period of not less than 10 years, or the applicable statute of repose in the state where the "new construction" took place, and make these documents available to the Company at its request.

Insurance under this endorsement does not apply to "bodily injury" or "property damage" arising out of, resulting from, directly or indirectly caused by, contributed to in whole or in part by, or in any manner related to, an earthquake.

The Each Occurrence Limit and Annual Aggregate Limit shown in this endorsement shall reduce the Limits of Liability shown on the Declarations page of the Commercial General Liability Coverage Part, and shall not in any manner increase the Per Occurrence Limit or the Aggregate Limit of the overall policy.

- A. For purposes of this Contingent Earth Movement Liability insurance only, the payments outlined in Paragraphs 1 of **SECTION I - SUPPLEMENTARY PAYMENTS COVERAGES A AND B** reduce the Limits of Insurance shown in the Schedule above.
- B. For purposes of this Contingent Earth Movement Liability insurance only, **SECTION III - LIMITS OF INSURANCE** is deleted and replaced by the following:
 1. The Limits of Insurance shown in the Contingent Earth Movement Liability Schedule above and the rules below fix the most we will pay regardless of the number of:
 - a. Insureds;
 - b. Claims made or "suit" brought; or
 - c. Persons or organizations making claims or bringing "suit".
 2. The Annual Aggregate Limit shown in the Contingent Earth Movement Liability Schedule above is the most we will pay for the sum of:

- a. Damages under **Coverage A** for "bodily injury" or "property damage" insured under this endorsement; and

- b. Any amounts that, but for Paragraph A. above, would have been payable under Paragraphs 1 of **SECTION I - SUPPLEMENTARY PAYMENTS - COVERAGES A AND B.**
3. The Products-Completed Operations Annual Aggregate Limit for "bodily injury" or "property damage" insured under this extension of Coverage A for Contingent Earth Movement Liability is the same as and included within the Annual Aggregate Limit shown in the Schedule above and, subject to the terms of this endorsement, is the most we will pay for such "property damage".
4. Subject to Paragraphs 2. and 3. above, whichever applies, the Each Occurrence Limit shown in the Schedule above is the most we will pay for the sum of:
- a. Damages under Coverage A;
 - b. Any amounts that, but for Paragraph A. above, would have been payable under Paragraphs 1 of **SECTION I - SUPPLEMENTARY PAYMENTS - COVERAGES A AND B** because of "property damage" insured under this extension of Coverage A for Contingent Earth Movement Liability arising out of any one "occurrence".

The Limits of Insurance of this Coverage Part apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

DEFINITIONS

"New construction" means, for purposes of this endorsement, any original construction, and any remodel that either expands the existing footprint of a structure, or involves any foundation work.